

Assignment Tool - 3

CO-1

08.10.2026

Name : K. Divya

Reg no : 192511316

Course : Ethical Hacking

code : ITA1434

24. You are hired by a US-based company to test servers that are physically hosted in another country with different cybersecurity laws. Analyze the jurisdiction and legal issues you must resolve before starting the engagement.

* A US-based company wants a security tester to test servers that are physically located in another country. Since cybersecurity laws differ between countries, the tester must carefully examine the jurisdictional and legal issues before starting the penetration test.

Justification

The tester needs proper legal authorization because an activity permitted by the company may still violate the laws of the country where the servers are located. Different countries may have different rules regarding unauthorized access, privacy, data protection, and cybersecurity testing. Therefore, checking both countries' legal requirements is necessary.

Legal issues

- * **Jurisdiction**: The laws of the server's physical location may apply.
- * **Authorization**: Written permission must clearly specify the systems and testing scope.
- * **Data privacy**: Testing may expose personal or confidential information.
- * **Third-party permission**: cloud or hosting providers may require separate approval.
- * **Cross-border data transfer**: Moving logs or test data between countries may have legal restrictions.
- * **Liability**: The tester or company may face legal consequences if testing goes beyond the authorized scope.

Resolution

- * Before beginning the test, the tester should obtain written authorization and a clearly defined scope.
- * The company should verify the cybersecurity and privacy laws of both

countries. If third party servers are involved, their permission should also be obtained.

* A proper contract should define jurisdiction, confidentiality, liability, data handling and dispute resolution.

Conclusion:

Cross-border penetration testing involves more than technical skills. The tester must ensure proper authorization, compliance with applicable laws, data protection and clear contractual agreement. Following these steps helps the company conduct the security test legally and avoid unnecessary legal risks.